

24STLC04585 24STLC04585

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-25

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Case Number: 24STLC04585 Hearing Date: August 25, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Partner Assessment

Corporation dba Partner Engineering and Science, Inc.'s Motion to Amend

Judgment is denied.

The Court on its

own motion will correct the clerical error in the Judgment by amending the

Judgment nunc pro tunc to identify the parties' names.

Plaintiff is

ordered to file a proposed amended judgment consistent with this Order within

ten days of this Order.

The Court sets a

non-appearance case review re: filing of the proposed amended judgment for September

2, 2026.

Analysis:

On June 26, 2024, Plaintiff Partner Assessment

Corporation dba Partner Engineering and Science, Inc. filed the instant action

against Defendant Suncroft Capital LLC ("Defendant"). The Court entered

default judgment on December 9, 2024. On May 29, 2026, Plaintiff filed the instant Motion to Amend

Judgment. No opposition has been filed to date.

Discussion

The Motion is not accompanied by

a proof of service of the moving papers and notice of the hearing date upon

Defendant. Failure to give notice of the papers and hearing date is a violation

of due process and of the statutory notice requirements. (Code Civ. Proc., §

1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.) Additionally, the

Motion is not accompanied by a memorandum of points and authorities, as

required by the California Rules of Court. "The memorandum must contain a

statement of facts, a concise statement of the law, evidence and arguments

relied on, and a discussion of the statutes, cases, and textbooks cited in

support of the position advanced." (Cal. Rules of Court, Rule 3.1113(b).) The Court cannot grant a Motion with these

procedural defects. The Motion is

denied.

Nonetheless, the Court may on its

own motion correct clerical errors in judgments pursuant to Code of Civil

Procedure, § 473(d). That section states that, "The court may, upon motion of

the injured party, or its own motion, correct clerical mistakes in its judgment

or orders as entered, so as to conform to the judgment or order directed." (Code Civ. Proc., § 473(d).) Here, the error is truly clerical. The Judgment entered and signed by the Court

omitted both parties' names in paragraph 5.

There are only two parties in this case.

Defendant Suncroft Capital LLC defaulted. "It has been held repeatedly that an order

correcting a clerical error in the record of a judgment may be made by the

court ex parte without notice and on the court's own motion." (In re Hultin's Est., 29 Cal. 2d 825,

829.) The Court will exercise this

authority here.

The proposed judgment submitted

with the Motion is inaccurate. It does

not identify the Defendant correctly, and includes an "et al." even though this

case concerns one defendant. The Court

orders Plaintiff to submit a corrected proposed judgment within ten days of

this Order. The corrected proposed judgment must identify the parties as they

are identified on the docket in this case.

Conclusion

Plaintiff Partner Assessment

Corporation dba Partner Engineering and Science, Inc.'s Motion to Amend

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own motion will correct the clerical error in the Judgment by amending the

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Plaintiff is

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The Court sets a

non-appearance case review re: filing of the proposed amended judgment for

September 2, 2026.

Moving

party to give notice.